

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

Index No.: \_\_\_\_\_  
Date Filed: \_\_\_\_\_

JAMES FULCHER,

Plaintiff designates  
Kings County

Plaintiff,

The basis of Venue is  
Place of Occurrence

-against-

***S U M M O N S***

THE CITY OF NEW YORK and DET. DMAINE FREELAND  
(Shield No.: 4615),

Plaintiff resides at:  
575 Franklin Avenue  
Brooklyn, NY 11238

Defendants,

County of Kings

To the above named Defendants:

***YOU ARE HEREBY SUMMONED*** to answer the Complaint in this action and to serve a copy of your Answer, or if the Complaint is not served with the Summons, to serve a Notice of Appearance on the plaintiff's attorneys within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: July 11, 2017

/s/ Jordan W. Tucker

***REINGOLD & TUCKER***

Attorneys for Plaintiff

26 Court Street

Brooklyn, New York 11242

Address of Defendants:

The City of New York: 100 Church Street, New York, New York

Det. Dmaine Freeland: 1 Police Plaza, New York, New York

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

JAMES FULCHER,

Plaintiffs,

-against-

THE CITY OF NEW YORK and DET. DMAINE  
FREELAND (Shield No.: 4615),

Defendants,

Index No.:

COMPLAINT

Plaintiff, by his attorneys, REINGOLD & TUCKER, as and for his Complaint, hereby alleges, upon information an belief, as follows:

1. At all relevant times, plaintiff was, and remains, a resident of the County of Kings, City and State of New York.

2. At all relevant times, defendant, THE CITY OF NEW YORK was, and still is, a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

3. At all relevant times, THE NEW YORK CITY POLICE DEPARTMENT was, and still is, an agency and/or department of defendant THE CITY OF NEW YORK, duly organized and existing under by virtue of the laws of the State of New York.

4. At all relevant times, defendant Det. Dmaine Freeland was, and remains, a member or employee of The New York City Police Department.

5. Plaintiff has complied with all of the applicable Sections of the General Municipal Law, which are conditions precedent to the bringing of this action against the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

6. On the 7<sup>th</sup> day of October, 2016, plaintiff's Notice of Claim and Intention to Sue were duly served upon and filed with the Office of the Comptroller of the City of New York; said notice was filed within ninety (90) days after the cause of action herein accrued.

7. At least thirty (30) days have elapsed since the demand or claim upon which this action is predicated was presented to the City for adjustment and that it has neglected and/or refused to make adjustment or payment thereof. That an action in the United States District Court, Southern District of New York was commenced within one year and (90) days after the cause of action accrued.

8. Prior to the 30<sup>th</sup> day of September, 2016 (the day all criminal claims terminated in favor of plaintiff), defendant CITY, its agents, servants, and/or employees, and in particular, defendant FREELAND, caused or instigated the malicious prosecution of plaintiff herein within Kings County. Plaintiff was originally arrested on or about the 20<sup>th</sup> day of January, 2015, while he was lawfully and legally located in front of his residence, located at 575 Franklin Avenue in the County of Kings, City and State of New York.

**AS AND FOR A FIRST CAUSE OF ACTION**

9. By virtue of the foregoing, defendants, THE CITY OF NEW YORK, its agents, servants and/or employees, and defendant Dmaine Freeland, are guilty of causing, instigating or otherwise participating tortiously in the malicious prosecution of plaintiff.

10. As a result of the foregoing, plaintiff sustained injuries including, but not limited to, loss of freedom and liberty, psychological, mental and emotional trauma, legal expenses, shame, embarrassment and suffering, as well as personal and public humiliation.

11. By reason of the foregoing, plaintiffs have been damaged in a sum that exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A SECOND CAUSE OF ACTION**

12. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “11” inclusive, as though the same were more fully pleaded herein.

13. By virtue of the foregoing, the defendant Det. Dmaine Freeland, violated plaintiff’s civil rights pursuant to 42 U.S.C. § 1983 and his rights under the U.S. Constitution, Bill of Rights and the New York State Constitution.

14. As a result of said violations, plaintiff sustained injuries including, but not limited to, loss of freedom and liberty, psychological, mental and emotional trauma, legal expenses, shame, embarrassment and suffering, as well as personal and public humiliation.

WHEREFORE, plaintiff demands judgment against defendant in the First and Second Causes of Action in an amount that exceeds the jurisdictional limits of all lower courts which otherwise have jurisdiction, such amounts to be determined upon the trial of this action, together with the costs and disbursements of this action.

Yours, etc.,

*/s/ Jordan W. Tucker*

REINGOLD & TUCKER  
Attorneys for Plaintiff  
26 Court Street  
Brooklyn, New York 11242  
(718) 875-4805